

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TAKAYSIA MATHISON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Tax # 940216) and POLICE
OFFICERS JOHN DOE 1-10,

Defendants.
-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
January 25, 2017

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York Law Department
100 Church Street
New York, N.Y. 10007

Index No:
Date Filed:

Plaintiff designates
KINGS COUNTY
as the place of trial

The basis of the venue is:
Place where the cause of action
arose

SUMMONS

The plaintiff resides at:
Kings County, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
TAKAYSIA MATHISON,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Tax # 940216) and POLICE
OFFICERS JOHN DOE 1-10,

Defendants.

-----X

TAKAYSIA MATHISON (hereinafter "plaintiff"), by her attorney(s) THE LAW
OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF
NEW YORK, POLICE OFFICER DAVID GRIECO (Tax # 940216) and POLICE
OFFICERS JOHN DOE 1-10 (collectively referred to as "the defendants"), upon
information and well founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff is an African American female of full age.
3. At all relevant times, defendants POLICE OFFICER DAVID GRIECO (Tax # 940216) and POLICE OFFICERS JOHN DOE 1-10 of the New York City Police Department (hereinafter "defendant

officers"), upon information and belief, were and still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").

4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers. through its Police Department, namely NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts.
8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.

This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the claim(s) is/are based.

FACTUAL ALLEGATIONS

9. On or about January 27, 2016, at approximately 06:00 a.m., the plaintiff was unlawfully arrested by the defendant officers within her residence known and described as 580 Sutter Avenue, #5B, Brooklyn, N.Y. 11207 ("subject premises").
10. At the time of their arrests, the plaintiff had not committed any crime or offense.
11. That prior to the time of her arrest, the defendant officers had knocked on the door of the subject premises; That the plaintiff's mother, namely Diane Mathison, had answered the door; That the defendant officers informed Diane Mathison that they had a warrant for her arrest, which they claim was issued after Diane Mathison had missed a court date; that even though Diane Mathison identified herself to the respondent officers at the door to the subject premises as the subject of the arrest warrant, the defendant officers unlawfully entered into the apartment; that upon unlawfully entering into the subject premises the respondent officers then proceeded to unlawfully search the subject premises; that at the time the defendant officers conducted the unlawful search of the subject premises, the plaintiff was in her bedroom; that the defendant officers unlawfully entered into the plaintiff's bedroom, ordered the plaintiff to get dressed, and then arrested the plaintiff for absolutely no reason; that the plaintiff were then taken to the 75th police precinct and photographed and fingerprinted; that at approximately 06:00 p.m. on 01/27/2016, the plaintiff was released from the precinct after the defendant David Greico had issued a Summons wherein he charged the plaintiff with "*unlawful possession of marijuana*" and alleged, *inter alia*, that the

plaintiff was "*found in possession of a small quantity of marijuana*" at the subject premises.

12. That on 03/29/2016, when the plaintiff appeared in Court pursuant to the Summons issued by respondent Greico, the criminal proceedings initiated by Greico were adjourned in contemplation of dismissal.
13. That the criminal proceedings initiated against the plaintiff by Greico were dismissed on 09/28/2016.

CAUSE OF ACTION: UNLAWFUL ENTRY/SEARCH UNDER 42 U.S.C §
1983

14. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 13 of this complaint as though fully set forth herein.
15. That the defendants unlawfully entered into the subject premises without the plaintiff's permission or consent, even though they did not have a warrant issued by a court of competent jurisdiction that permitted them to do so.
16. Upon unlawfully entering into the subject premises, the defendants searched and/or caused the plaintiff and/or her property to be searched, without any individualized reasonable suspicion that the plaintiff was concealing weapons or contraband.
17. As a result of the foregoing, the plaintiff and/or her property was/were subjected to an illegal and improper search.
The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983 and NEW YORK STATE LAW

18. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 17 of this complaint as though fully set forth herein.

19. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
20. As a result of plaintiff's above-described false arrest and detention, she has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know her, was prevented from attending to her necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in her character and reputation.
21. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.
22. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
23. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

24. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 23 of this complaint as though fully set forth herein.
25. The defendant officers fabricated evidence and/or created false evidence against the plaintiff.
26. The defendant officers forwarded fabricated and false evidence/false information to the prosecutors in the Kings County District Attorney's office.
27. The defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.

28. The defendant officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
29. The defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
30. The defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
31. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in the plaintiff being deprived of her liberty, the defendant officers violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
32. As a consequence of the defendant officers' actions, the plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and her constitutional rights were violated. The Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.
33. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

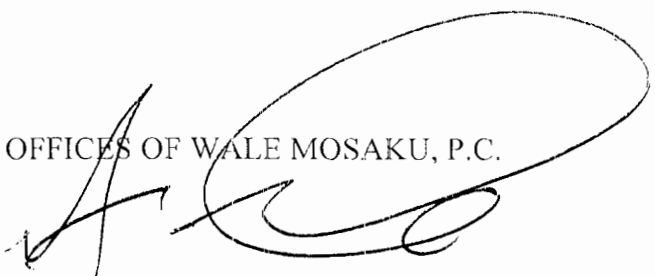
34. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 33 of this complaint as though fully set forth herein.

35. Each and every individual defendant had an affirmative duty to intervene on plaintiff's behalf to prevent the violation to her constitutional rights, as more fully set forth above.
36. The individual defendants failed to intervene on plaintiff's behalf to prevent the violation of her constitutional rights, despite having had a realistic and reasonable opportunity to do so.
37. As a consequence of said defendants' actions, plaintiff suffered loss of liberty, personal injuries, humiliation, mental anguish, depression, and her constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
January 25, 2017

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
TAKAYSIA MATHISON,
Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Tax # 940216) and POLICE
OFFICERS JOHN DOE 1-10,

Defendants.

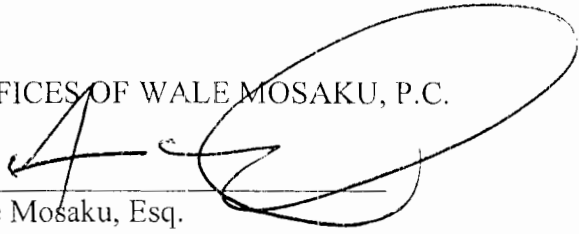
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
January 25, 2017

LAW OFFICES OF WALE MOSAKU, P.C.



BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

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THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Tax # 940216) and POLICE
OFFICERS JOHN DOE 1-10,

Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 201_

Attorney(s) for Defendant(s)
